

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #3	CCRB Case #: 201408307	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 08/11/2014 12:00 PM	Location of Incident: § 87(2)(b) and § 87(2)(b) Hospital	Precinct: 73	18 Mo. SOL 2/11/2016	EO SOL 2/11/2016	
Date/Time CV Reported Thu, 08/14/2014 9:23 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/14/2014 9:23 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Anthony Austin	19517	926525	073 PCT
2. POM Roger Brown	17221	939944	073 PCT
3. An officer			073 PCT
4. POM Carlos Herrera	23317	952847	073 PCT
5. POF Andreea Avram	00283	945371	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Roger Brown	Abuse: PO Roger Brown entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
B.POM Roger Brown	Force: At § 87(2)(b) in Brooklyn, PO Roger Brown used physical force against § 87(2)(b)	§ 87(2)(b)
C.POM Anthony Austin	Force: At § 87(2)(b) in Brooklyn, PO Anthony Austin used pepper spray against § 87(2)(b)	§ 87(2)(b)
D.POM Anthony Austin	Force: At § 87(2)(b) and at § 87(2)(b) Hospital in Brooklyn, PO Anthony Austin used physical force against § 87(2)(b)	§ 87(2)(b)
E.POM Carlos Herrera	Force: At § 87(2)(b) in Brooklyn, PO Carlos Herrera used physical force against § 87(2)(b)	§ 87(2)(b)
F.POF Andreea Avram	Force: At § 87(2)(b) in Brooklyn, PO Andreea Avram used physical force against § 87(2)(b)	§ 87(2)(b)
G. An officer	Force: At § 87(2)(b) in Brooklyn, an officer used a chokehold against § 87(2)(b)	§ 87(2)(b)
H. An officer	Force: At § 87(2)(b) in Brooklyn, an officer restricted § 87(2)(b)'s breathing.	§ 87(2)(b)
I.POM Anthony Austin	Discourtesy: At § 87(2)(b) in Brooklyn, PO Anthony Austin spoke rudely to § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
J.POM Anthony Austin	Abuse: At § 87(2)(b) Hospital in Brooklyn, PO Anthony Austin threatened § 87(2)(b) with the use of force.	
§ 87(2)(g), § 87(4-b)		

Case Summary

On August 14, 2014, § 87(2)(b) filed this complaint on behalf of herself and her daughter, § 87(2)(b) with the CCRB via telephone. On August 15, 2014, § 87(2)(b) filed a duplicate complaint via telephone, generating CCRB case number 201408368.

On August 11, 2014, at approximately 11:43 a.m., § 87(2)(b) and her daughter, § 87(2)(b) got into a physical altercation in their apartment at § 87(2)(b) § 87(2)(b) in Brooklyn. § 87(2)(b) went downstairs to § 87(2)(b) where her neighbor, § 87(2)(b) called 911 on her behalf because she was bleeding. § 87(2)(b) remained in § 87(2)(b) called 911, and stated that § 87(2)(b) had kicked her in the abdomen, broke her nails, and scratched her. PO Anthony Austin, PO Roger Brown, PO Carlos Herrera, and PO Andrea Avram arrived at the scene. PO Brown, PO Herrera, and PO Avram went upstairs while PO Austin remained with § 87(2)(b). PO Brown knocked on § 87(2)(b)'s door and § 87(2)(b) opened it slightly and refused to exit her apartment. PO Brown put his foot in the path of her door to prevent her from closing it (**Allegation A**). PO Brown allegedly scratched § 87(2)(b)'s upper left arm and dug his fingers into her arm (**Allegation B**). PO Austin went upstairs and saw the officers struggling to remove § 87(2)(b) from the apartment and place her in handcuffs. PO Austin deployed one burst of pepper spray into § 87(2)(b)'s face (**Allegation C**), which enabled the officers to remove her from the apartment. § 87(2)(b) was then allegedly punched by the officers from behind in the head, neck, and back over 24 times (**Allegations B (cont'd), D, E, and F**). An unidentified officer then placed § 87(2)(b) in a chokehold by bringing his arm around her neck from behind, restricting her breathing for over 30 seconds (**Allegations G and H**). The officers then brought § 87(2)(b) down to the first floor, where they allegedly pushed her into the lobby's walls and attempted to throw her into a window (**Allegations B, D, E, and F cont'd**). § 87(2)(b) told PO Austin that she did not want to press charges against § 87(2)(b) and he allegedly replied, "She beat your ass." (**Allegation I**)

§ 87(2)(b) and § 87(2)(b) were both brought to § 87(2)(b) Hospital in separate ambulances. At the hospital, PO Austin allegedly called § 87(2)(b) a "ho" (**Allegation I cont'd**) and made comments about her attire. At the request of a physician, PO Austin brought § 87(2)(b) to a private treatment room, where he allegedly threatened to strangle her with a cell phone charger (**Allegation J**). PO Austin then allegedly "threw § 87(2)(b) around" the room, lifted her off of the ground, threw her on top of a bed, pinned her onto the bed, and punched her in the front of her upper body at least three times (**Allegation D cont'd**). PO Austin and § 87(2)(b) then exited the room. PO Austin charged towards § 87(2)(b) but § 87(2)(b) jumped between them and "took his blows." (**Allegation D cont'd**) PO Austin allegedly grabbed § 87(2)(b) by her arms and threw her into walls, into a man with crutches, and onto another hospital bed (**Allegation D cont'd**). When § 87(2)(b) told PO Austin not to curse at § 87(2)(b) he allegedly replied, "She beat your ass anyway." (**Allegation I cont'd**) § 87(2)(b) was brought to the psychiatric ward in police custody.

Mediation, Civil, and Criminal Histories

- § 87(2)(b)
- § 87(2)(b) and § 87(2)(b) have not filed a notice of claim with the City of New York as of March 6, 2015 with regard to this incident (encl. 36T).
- Neither § 87(2)(b) nor § 87(2)(b) has any prior criminal convictions (encl. 32A-E).

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- § 87(2)(b) [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- PO Anthony Austin has been a member of the NYPD for 14 years and has had 18 previous CCRB allegations involving 12 cases with 2 substantiated allegations (encl. 4A-B).
 - In case number 200300215, allegations that PO Austin refused to provide his name/shield number and had a discourteous demeanor/tone were substantiated. The CCRB recommended command discipline, which the NYPD in turn imposed.
- This is the first CCRB complaint filed against PO Roger Brown during his nine year tenure (encl. 5A).
- PO Carlos Herrera has been a member of the NYPD for 2 years and has had 3 previous CCRB allegations involving 2 cases with 1 substantiated allegation (encl. 6A).
 - In case 201304146, an allegation that PO Herrera improperly frisked § 87(2)(b) [REDACTED] was substantiated. The CCRB recommended command discipline and the PO Herrera received instructions.
- This is the first CCRB complaint filed against PO Andreea Avram during her seven year tenure (encl. 7A).

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(b) [REDACTED] alleged that at § 87(2)(b) [REDACTED] PO Austin told § 87(2)(b) [REDACTED] to “shut the fuck up” and said, “I’m gonna arrest you if you don’t stop it.” She also alleged that at § 87(2)(b) [REDACTED] Hospital, PO Austin told § 87(2)(b) [REDACTED] to “shut the fuck up” and said, “If you don’t shut the fuck up, I’m gonna put you somewhere and shut you up.” § 87(2)(b) [REDACTED] alleged that at § 87(2)(b) [REDACTED] Hospital, PO Austin said, “I’m tired of you talking, why don’t you just shut the fuck up?” to § 87(2)(b) [REDACTED]. Seeing as § 87(2)(b) [REDACTED] did not repeat any of these allegations in any of her statements, she is not listed as a victim of a discourtesy allegation or a threat of arrest allegation by PO Austin at § 87(2)(b) [REDACTED] or at § 87(2)(b) [REDACTED] Hospital.
- § 87(2)(b) [REDACTED] alleged that she verbally requested medical treatment, but was removed from § 87(2)(b) [REDACTED] Hospital in police custody by PO Austin before receiving any. § 87(2)(b) [REDACTED]’s medical records, however, reveal that she was seen by numerous physicians and was discharged because she did not exhibit any acute symptoms that required admission (encl. M31). A refusal to obtain medical treatment allegation is therefore not pleaded against PO Austin.

Allegation A: PO Roger Brown entered § 87(2)(b) § 87(2)(b) in Brooklyn.

§ 87(2)(b) stated that after she opened her door four to five inches, an officer attempted to push the door open further. § 87(2)(b) prevented the officers from doing so by placing a foot against the door. The § 87(2)(b) neighbor, § 87(2)(b) from § 87(2)(b) stated in her 911 call that § 87(2)(b) “stamped” on § 87(2)(b) and attempted to set her hair on fire and that § 87(2)(b) was bleeding on her floor in § 87(2)(b) (encl. 13A). Central dispatch told the officers that the suspect of the assault was in § 87(2)(b) (encl. 23N).

PO Brown stated that § 87(2)(b) told PO Austin that § 87(2)(b) attacked her, set her hair on fire, and was on the second floor. He also stated that he placed a foot in the path of § 87(2)(b)'s door, preventing her from closing it, and that she acknowledged getting into an argument with § 87(2)(b). He did so due to the nature of the crime she was accused of and because he did not know what she had behind the door. PO Herrera stated that either PO Austin or PO Brown held the door open with a hand as § 87(2)(b) attempted to push it closed. PO Austin did not see any officer prop § 87(2)(b)'s door open. All three officers stated that § 87(2)(b) refused to exit her apartment, but § 87(2)(b) stated that the officers did not ask her to do so.

According to People v. McBride (13 N.Y.3d 440 (2010) (encl.1A-G)), the following factors may be used to determine if exigent circumstance exists to justify a warrantless entry into a home: (1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause to believe that the suspect committed a crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation B: At § 87(2)(b) in Brooklyn, PO Roger Brown used physical force against § 87(2)(b)

Allegation E: At § 87(2)(b) and § 87(2)(b) Hospital in Brooklyn, PO Carlos Herrera used physical force against § 87(2)(b)

Allegation F: At § 87(2)(b) in Brooklyn, PO Andreea Avram used physical force against § 87(2)(b)

Allegation G: At § 87(2)(b) in Brooklyn, an officer used a chokehold against

Allegation H: At § 87(2)(b) **in Brooklyn, an officer restricted** § 87(2)(b) **s**
breathing.

Allegation I: At § 87(2)(b) and § 87(2)(b) Hospital in Brooklyn, PO Anthony Austin spoke rudely to § 87(2)(b) and § 87(2)(b)
Allegation J: At § 87(2)(b) Hospital in Brooklyn, PO Anthony Austin threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that after she opened her door, PO Brown grabbed her arm, scratched her upper left arm repeatedly, and dug his nails into her arm. After she exited her apartment, multiple officers allegedly punched her from behind with closed fists in her head, neck, and back over 24 times, resulting in scratches and bruises to her upper left arm and back. An unidentified officer then placed § 87(2)(b) in a chokehold by bringing his or her arm around her neck from behind, restricting her breathing for over 30 seconds. The officers then brought § 87(2)(b) downstairs and allegedly pushed her all around the lobby, causing her to make impact with the lobby's walls, and attempted to throw her through a window. At § 87(2)(b) Hospital, PO Austin allegedly called § 87(2)(b) a "ho" and made comments about how she was dressed. PO Austin brought § 87(2)(b) to a private treatment room, where he allegedly threatened to strangle her with a cell phone charger. When § 87(2)(b) told PO Austin that she planned on dropping the charges against her, PO Austin allegedly replied, "Get the fuck out of here bitch, that wasn't part of the plan. You're a stupid ho," or, "I'm gonna press these charges, you stupid bitch."

§ 87(2)(b) alleged that at § 87(2)(b) when she told PO Austin that she did not want to press charges against § 87(2)(b) he replied, "She beat your ass." In addition, at § 87(2)(b) Hospital, when she told PO Austin not to curse at § 87(2)(b) he allegedly replied, "She beat your ass anyway." § 87(2)(b) stated that no officer called her as a "bitch" or a "ho" at any point

§ 87(2)(b) who remained on the first floor during the part of the incident that occurred at § 87(2)(b) and did not see what was happening upstairs, stated that she did not see any officers make push or make physical contact with § 87(2)(b) on the first floor. She saw bruises on § 87(2)(b)'s face when she was brought downstairs. § 87(2)(b)'s neighbor who was present at § 87(2)(b) denied that officers ever made physical contact with § 87(2)(b) while they were on the first floor until she was escorted out of the building. She denied that any officer said, "She beat your ass," and stated that no officer used any profanities at any point. She stated that although she is "not fond" of police and that the NYPD has harassed her in the past, the officers acted in a courteous manner during this incident, even towards § 87(2)(b) whom she stated was loud and irate and used numerous profanities. § 87(2)(b) stated that no officer used profanities towards § 87(2)(b) or called her a "ho" at § 87(2)(b) Hospital. Neither § 87(2)(b) nor § 87(2)(b) was present in the private treatment room with § 87(2)(b) but they heard her complain that PO Austin attempted to strangle her with a cord. § 87(2)(b) stated that PO Austin pulled § 87(2)(b) to a private treatment room and § 87(2)(b) resisted by jerking and turning her body and shouting, "Let me go." § 87(2)(b) denied that PO Austin told § 87(2)(b) that § 87(2)(b) "beat [her] ass" and stated that PO Austin did not use any profanities towards § 87(2)(b) at any point.

PO Austin, PO Brown, and PO Herrera denied all of the above allegations or seeing or hearing any other officer do so. A brief surveillance footage clip from § 87(2)(b) Hospital shows § 87(2)(b) attempting to pull away from PO Austin, who was holding her from behind by her handcuffs. PO Austin and § 87(2)(b) moved out of the frame, but bystanders can be seen staring in their direction.

§ 87(2)(b) s medical records indicate that she was physically and verbally abusive towards hospital personnel and, as such, she was sent to the psychiatric ward (encl. M9). She was diagnosed with abrasions to her breasts and was discharged to home/self-care (encl. M7).

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation C: At § 87(2)(b) in Brooklyn, PO Anthony Austin used pepper spray against § 87(2)(b)

§ 87(2)(b) stated that approximately 90 seconds after she opened her door, as the officers were struggling to remove her from the apartment and handcuff her, she saw PO Austin come upstairs with pepper spray in his hand. At this time, one of her hands was handcuffed and she kept the other on top of PO Brown's hand, which was resting on his gun, in order to prevent him from shooting her. She allegedly stepped out of her apartment into the hallway and allowed PO Austin to pepper spray her from less than three feet away. PO Austin stated that when he arrived on the second floor after "a couple of minutes" downstairs with § 87(2)(b) he saw the officers struggling to handcuff § 87(2)(b) who was halfway in the hallway and refusing to exit her apartment. PO Austin acknowledged deploying one burst of pepper spray to § 87(2)(b) s facial area, after which she was able to be successfully handcuffed. PO Brown and PO Herrera also stated that PO Austin pepper sprayed § 87(2)(b) but PO Brown stated that § 87(2)(b) was in the hallway at the time. Both stated that she refused to exit her apartment and attempted to push her door closed.

According to Patrol Guide Procedure 212-11 (encl. 2A-D), pepper spray may be used when an officer reasonably believes it is necessary to affect the arrest of a resisting suspect, or to take a resisting emotionally disturbed person into custody.

§ 87(2)(b), § 87(2)(g)

Allegation D: At § 87(2)(b) and at § 87(2)(b) Hospital in Brooklyn, PO Carlos Herrera used physical force against § 87(2)(b)

After § 87(2)(b) exited her apartment, multiple officers allegedly punched her from behind with closed fists in her head, neck, and back over 24 times, resulting in scratches and bruises to her upper left arm and back. The officers brought § 87(2)(b) downstairs and allegedly pushed her all around the lobby, causing her to make impact with the lobby's walls, and attempted to throw her through a window. At § 87(2)(b) Hospital, PO Austin brought § 87(2)(b) to a private treatment room. PO Austin allegedly "threw § 87(2)(b) around" the room, lifted her off of the ground, threw her on top of a bed, pinned her onto the bed, and punched her in the front of her upper body at least three times. PO Austin and § 87(2)(b) then exited the room. PO Austin charged towards § 87(2)(b) but § 87(2)(b) jumped between them and allegedly "took his blows." She did not recall where she was struck on this occasion because she "had a lot of fighting to do that day." PO Austin allegedly grabbed § 87(2)(b) by her arms and pushed her into walls and into a man with crutches and threw her onto another hospital bed.

As discussed previously, both § 87(2)(b) and § 87(2)(b) denied seeing any officer make physical contact with § 87(2)(b) on the first floor. At the hospital, § 87(2)(b) was in a private treatment room but had a view of the Fast Track waiting area and saw § 87(2)(b) and PO Austin pass her room numerous times. She stated that PO Austin pulled § 87(2)(b) by her handcuffs and pushed her around the urgent care area in order to get her to come with him to wherever he was taking her. She did not see PO Austin push § 87(2)(b) into a wall or a man with crutches. § 87(2)(b) was walking along with PO Austin and did not offer resistance. § 87(2)(b) did not see any officer punch § 87(2)(b) at § 87(2)(b) Hospital. As mentioned previously, § 87(2)(b) stated that PO Austin pulled § 87(2)(b) to a private treatment room and § 87(2)(b) resisted by jerking and turning her body and shouting, "Let me go."

PO Austin denied all of the above allegations. He stated that when § 87(2)(b) saw § 87(2)(b) at § 87(2)(b) Hospital, she jumped out of her chair as if she was going to "go after" her and he restrained her by holding her handcuffs. PO Austin further stated that a doctor instructed him to take § 87(2)(b) to a private treatment room for examination, but he was unable to get her into the room because she was pulling away from him. A doctor then instructed PO Austin to take § 87(2)(b) to the psychiatric ward. PO Brown, PO Herrera, and PO Avram were not present at § 87(2)(b) Hospital. A brief surveillance footage clip from § 87(2)(b) Hospital (on a disc in the "Copies Already Made" envelope affixed to the "Misc." folder) shows § 87(2)(b) attempting to pull away from PO Austin, who was holding her from behind by her handcuffs.

According to Patrol Guide Procedure 203-11 (encl. 1H-I) officers must use the minimum necessary physical force at the scene of a police incident.

§ 87(2)(b), § 87(2)(g)
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Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
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